Many Indian social scientists have described the Hindutva movement as fascist in the classical sense of the term. Marxist social scientist Prabhat Patnaik, for instance, is a prominent advocate of the argument that the Hindutva movement is 'classically fascist in class support, methods and programme'.[62] Patnaik and others find the following elements of classical fascism present in Hindutva: its attempt to create a unified homogeneous majority defined as 'the Hindus'; its sense of grievance against past injustice, especially by Muslim rulers; its sense of cultural superiority and affirmation of the timeless truths embodied in Hinduism; its interpretation of history in the light of its grievances against past oppressors and its faith in the superiority of its own tenets; its rejection of all arguments against such an interpretation of history; and its appeal to a religious and cultural Hindu majority articulated in terms of race and masculinity. (He could have added the frequent and easy resort to majoritarian mob violence against helpless members of minority faiths, occurring with increasingly troubling frequency in recent years.) Well before Modi became prime minister, the sociologist Ashis Nandy had described him as an archetypal fascist ('a classic, clinical case of a fascist').[63]

However, it must be said that Modi has not conducted himself in office in the manner Nandy's analysis would have suggested. He has repeatedly spoken of being a prime minister for all Indians; arguably his most effective slogan has been '*sab ka saath, sab ka vikas*'—'together with everyone, development for all'.

Nor can it be denied that the ascent of Hindutva supporters to the pinnacle of political power in India has occurred, significantly, under India's secular constitution, and through entirely democratic and legal means. The great question before us today is, therefore: Will constitutionalism tame Hindutva, or will Hindutva transform the workings of the constitution?

On 11 December 1995, a three-judge bench of the Supreme Court, headed by a famously liberal Chief Justice, J. S. Verma, declared that Hindutva was a 'way of life and not a religion'. The court explained: 'Ordinarily, Hindutva is understood as a way of life or a state of mind and is not to be equated with or understood as religious Hindu